
This act summary is provided for the convenience of the public and members of the General Assembly. It is intended to provide a general summary of the act and may not be exhaustive. It has been prepared by the staff of the Office of Legislative Counsel without input from members of the General Assembly. It is not intended to aid in the interpretation of legislation or to serve as a source of legislative intent.

Act No. 152 (S.325). An act relating to regional planning and Act 250 Tier jurisdiction

Subjects: Housing; land use; conservation and development; municipal zoning; Act 250

This act makes multiple changes related to Act 250 Tier jurisdiction and regional planning. It repeals multiple sections from 2024 Acts and Resolves No. 181, including the Act 250 road jurisdictional trigger, the section that created Act 250 Tier 2 and Tier 3, the Tier 3 rulemaking process section, the section requiring the Tier 2 area report, and the associated effective dates. It amends the Act 250 interim exemptions for housing to extend them from either January 1 or July 1, 2027, until January 1, 2028. It exempts certain accessory on-farm business events from needing an Act 250 permit.

It adds language clarifying that when a municipal zoning permit is being amended, it needs to add relevant permit conditions from an existing Act 250 permit on the site so that the conditions may be enforced as part of the municipal permit. It also strikes the requirement that towns with Tier 1A area status must enforce preexisting Act 250 permits in the area.

It delays the date the new Act 250 criterion 8(C) rule is due to the Legislative Committee on Administrative Rules until June 15, 2027.

It directs the State Natural Resources Conservation Council with the Vermont Council on Rural Development and the Vermont Association of Conservation Districts to develop a report outlining recommendations for a public engagement plan for issues related to working lands and critical natural resources. The plan is due on January 15, 2027. There is an appropriation of \$30,000.00 for the plan.

It creates the Joint Legislative Environmental Oversight Committee, composed of six legislators, to oversee the environmental permitting processes of the Land Use Review Board (LURB) and the Agency of Natural Resources.

It requires the LURB to draft multiple reports. The first report on Act 250 jurisdiction over commercial farm activities is due on November 15, 2026. The next report will review the mitigation of primary agricultural soils under Act 250 and is due on July 1, 2027. The third is on the effectiveness of the Act 250 jurisdictional triggers and criterion 9(L) on addressing sprawl and is due on November 15, 2027.

It adds that the LURB shall coordinate with the Community Investment Board in addition to State agencies in the review of regional plans. It then strikes out references to regional plan amendments and creates a separate procedure for regional plan amendments. It also adds that if a regional planning commission is seeking an enhanced energy determination, it shall include that as part of the LURB review process.

It amends the statute that establishes the elements of the regional plans, including the land use categories for the future land use maps. It adds a reference to the smart growth

principles. It amends the downtown or village centers category by stating that the centers are traditional or historic areas, instead of both traditional and historic. It also adds that municipalities may have more than one center, including planned new or emerging centers that anchor planned growth or village areas. It amends the planned growth area category to strike out references to designated areas and to the smart growth principles because it is already referenced in that statute. It also requires the area to have the opportunity for development, infill development, and redevelopment that is needed to meet the regional and municipal housing targets. It amends the village area category to strike out that these areas will include existing designated village centers. It also changes the requirement for “municipal” to “public” water or wastewater and adds language that requires the area to support the development of housing to meet the regional and municipal housing targets. It amends the rural conservation category to strike out the reference to the conservation goals of 10 V.S.A. chapter 89 and the requirement that Tier 3 areas be mapped in these areas. It extends any regional or municipal plan that is expiring this year or in 2027 to December 31, 2027.

It amends multiple definitions in the chapter that establishes the Community Investment Program, the successor program to the State Designation Program. It adds language clarifying that the guidance for the Downtown and Village Center Tax Credit Program shall make clear that only those areas with areas that are or are eligible to be listed in the National Register of Historic Places shall be considered. It adds a requirement for the Community Investment Board to submit an annual report to the General Assembly of the Board’s activity for the prior year.

It directs the Department of Housing and Community Development to meet with stakeholders and recommend mechanisms for limiting appeals of municipal permits while still allowing for review and to report on the impacts of discretionary review of residential development. The report shall also include a status update on the 802 Homes pilot program and data on the housing built under the interim Act 250 exemptions. The report is due on January 15, 2027.

It delays some of the deadlines for the State environmental justice work. For the implementation of agency annual spending reports, it delays it one year until January 15, 2029. Next, the Agency of Natural Resources’ environmental justice rules are delayed 1.5 years until January 1, 2029, and the rules for other agencies are delayed two years until July 1, 2030. It also delays the environmental justice mapping tool one year until January 1, 2028.

Multiple effective dates, beginning on July 1, 2026